

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-00575
CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF
DOCS OF RECORDS
FILED BY: DOE N.M., JANE
TENTATIVE RULING:

Plaintiff Jane Doe N.M. ("Plaintiff") filed a motion to compel further responses to request for production of documents on March 2, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks further responses to Request for Production of Documents, No. 41 (the "RPD"). The Motion to Compel was set for hearing August 3, 2026. The motion is opposed.

Background

Plaintiff served the RPD on December 10, 2025. See Opposition to Motion to Compel filed July 21, 2026 (the "Opposition"), p. 2. Defendant Elements Massage ("Defendant") responded with objections on January 12, 2026. *Id.* The parties describe meet and confer efforts in February 2026, which were unsuccessful. See Opposition p. 2; Motion to Compel, p. 2. Plaintiff subsequently filed the Motion to Compel. The Proof of Service filed March 2, 2026 reflects service on Defendant's counsel.

A case management conference ("CMC") was held on June 11, 2026. In its CMC Order, the Court directed the parties to further meet and confer regarding the discovery dispute. See CMC Order filed June 11, 2026, ¶1.

Following the CMC, the parties have continued to meet and confer. See Opposition, p. 3; Reply to Opposition filed July 24, 2026 (the "Reply"), pp. 1-2. Although no agreement has been finalized, both parties have indicated substantial progress toward a resolution, which includes a protective order and more limited scope of document production. *Id.*

Defendant filed the Opposition on July 21, 2026, and Plaintiff filed the Reply on July 24, 2026.

Analysis

In light of the parties' substantial progress toward a resolution, the Court, in its discretion, hereby continues the matter to **September 14, 2026, 9:00 am** in **Department 34**. The parties are ordered to engage in further meet and confer efforts to try to reach a final resolution to the discovery dispute.

Disposition

The Court hereby finds and orders as follows:

1. The hearing is **CONTINUED** to **September 14, 2026, 9:00 am** in **Department 34**.
2. The parties are ordered to continue to meet and confer regarding a final resolution to the discovery dispute. If resolved, the parties should advise Department 34 as soon as possible and, in any event, no less than a week in advance of the continued hearing date.

16. 9:01 AM CASE NUMBER: C25-01305
CASE NAME:INDERJEET KAUR VS. VOLKSWAGEN GROUP OF AMERICA, INC.,
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1
FILED BY: KAUR,INDERJEET
TENTATIVE RULING:

Plaintiff Inderjeet Kaur ("Plaintiff") filed a Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, February 25, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing initially on August 3, 2026. The motion is opposed.

Disposition

In the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the Court, *sua sponte*, orders as follows:

1. The Motion to Compel Further Responses is **CONTINUED** to **September 24, 2026, 9:00 am**, in **Department 20 (Judge Melissa O'Connell)**.
2. **Further Court Ordered Meet and Confer.** The parties are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue **within thirty (30) days** of the date of this order. **Such further meet and shall be done through direct talks (in person or via video conference) and address each disputed discovery item by time.**
3. **Compliance Statement.** For the parties' consideration, among other things, in connection with the further meet and confer, the Court notes that it is concerned about the responding party's use of the phrase "will allow this request" in its responses. Such phraseology does not appear to be code compliant. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469. A compliance statement must indicate that the party "will comply" with the particular demand and make the other statements required by Code of Civil Procedure section 2031.220. See Code Civ. Proc. § 2031.220.
4. **Further Joint Filing.** If not resolved through such further talks, the parties are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **September 10, 2026**, the parties shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing ONLY the most recent and operative response at issue if a supplemental or amended response has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the